

TENTATIVE RULINGS

DEPT CX102

Judge Layne H. Melzer

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Non-appearances: If nobody appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

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No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

TENTATIVE RULINGS**9/10/2026****02:00 PM**

100	Burns vs. Power Paragon, Inc. 2021-01197621	Final Accounting The court finds all settlement distribution efforts are fully concluded. The administrator's final report (ROA 164) is thus approved, and the court's file is closed. Plaintiff to give notice of the court's ruling, including to the LWDA, within five (5) calendar days, and file proof of service.
101	Hsieh vs. Christ Church By The Sea 2025-01530561	1. Demurrer to Cross-Complaint 2. Motion to Strike Cross-Complaint 1. Demurrer Plaintiffs and Cross-Defendants Denise Hsieh, Cera Norton, Merrick Chepo, Laura Ingersoll, Sean Jarne, Jen Swisher, Kaylee Mason, Meghan Meek, Megan Gill, Nicci Dewez, Amanda Padilla, Sean Finegan, Shai Reynolds, Monica Stasiak, Nicole Oudyk, and Ben Hogan's (collectively, "plaintiffs") unopposed Demurrer to the Second Cause of Action for Defamation in the Cross-Complaint ("XC") of Defendants and Cross-Complainants Christ Church by the Sea and Christ Church by the Sea Children's Center (collectively, "defendants") is OVERRULED . <u>Procedural Issue</u> Per C.C.P. § 430.41(a)(3), the "demurring party shall file and serve with the demurrer a declaration" concerning the parties' meet and confer efforts. Plaintiffs have failed to file any such declaration. <u>Legal Authority</u> In evaluating a demurrer, the court is guided by long-settled rules. The court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law." Serrano v. Priest (1971) 5 Cal.3d 584, 591. "The complaint must be construed liberally by drawing reasonable inferences from the facts pleaded." Rodas v. Spiegel (2001) 87 Cal.App.4th 513, 517. "Further, [the Court] gives the complaint a reasonable interpretation, reading it as a whole and its parts in their context." Blank v. Kirwan (1985) 39 Cal.3d 311, 318. "To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged." C.A. v. William S. Hart Union High School Dist. (2012) 53 Cal.4th 861, 872.

Merits

Plaintiffs demur to the XC's Second Cause of Action for Defamation. "The elements of a defamation claim are (1) a publication that is (2) false, (3) defamatory, (4) unprivileged, and (5) has a natural tendency to injure or causes special damage. The defamatory statement must specifically refer to, or be of or concerning, the plaintiff." Jackson v. Mayweather (2017) 10 Cal.App.5th 1240, 1259–1260.

Plaintiffs argue the claim must be plead "with specificity" and the XC is therefore insufficient because it "fails to identify any specific defamatory statement." ROA 28 at 3. This argument lacks merit. The authority cited by plaintiff, Ellenberger v. Espinosa (1994) held that a claim for defamation was "defective because it does not allege either the specific words or the substance of the statements ... but instead merely alleges the conclusions of the pleader that statements were made which 'intimated and suggested' that plaintiff had done certain wrongful things." 30 Cal.App.4th 943, 951. Here, cross-complainant has alleged that "that, sometime beginning on September 2, 2025 and continuing thereafter, Cross-Defendants, and each of them perpetuated false, malicious, and defamatory statements, orally and verbally, that: (1) there was mold at Cross-Complainant, Christ Church by the Sea Children's Center, and (2) that the Pastor at Cross-Complainant, Christ Church by the Sea, had engaged in sexual misconduct." ROA 23 ¶ 14. Moving parties do not explain why these allegations do not qualify as "substance" pursuant to the very authority they cite. The court finds the allegations sufficient at this stage and factual details are properly the subject of discovery.

Plaintiffs also argue that cross-complainants must plead "specific" or "special damages" because the defamatory character of the statements are not apparent on their face. ROA 28 at 4. This argument also lacks merit. The alleged statements do not require further context to be understood as defamatory, i.e., "(1) there was mold at Cross-Complainant, Christ Church by the Sea Children's Center, and (2) that the Pastor at Cross-Complainant, Christ Church by the Sea, had engaged in sexual misconduct." ROA 23 ¶ 14. Cross-Complainants therefore need not plead special damages. McGarry v. University of San Diego (2007) 154 Cal.App.4th 97, 112 (Statements are libelous per se if the listener could understand the defamatory meaning without the necessity of knowing extrinsic explanatory matter.); Wong v. Jing (2010) 189 Cal.App.4th 1354, 1369–1370 (defamatory per se statements do not require pleading and proof of special damages); 5 Witkin, Summary of Cal. Law (11th ed. 2023) Torts, § 640 ("It is not necessary that the publication charge the commission of a crime; it is sufficient if it so reflects on the person's integrity as to bring him or her into disrepute."). A statement a persona engaged in sexual misconduct undoubtedly "reflects on person's integrity." The court therefore finds the allegations sufficient at this stage.

Plaintiffs also demur on the basis of uncertainty. There is no merit to this argument. The court will only sustain a demurrer for uncertainty if it is so poorly drafted the other party cannot reasonably respond. Khoury v.

Maly's of California Inc. (1993) 14 Cal.App.4th 612, 616. The second cause of action is not so uncertain that plaintiffs cannot respond.

The court finds the allegations sufficient at the pleading stage and the demurrer as to the Second Cause of Action for Defamation is OVERRULED on that basis.

2. Motion to Strike

Plaintiffs and Cross-Defendants Denise Hsieh, Cera Norton, Merrick Chepo, Laura Ingersoll, Sean Jarne, Jen Swisher, Kaylee Mason, Meghan Meek, Megan Gill, Nicci Dewez, Amanda Padilla, Sean Finegan, Shai Reynolds, Monica Stasiak, Nicole Oudyk, and Ben Hogan's (collectively, "plaintiffs") unopposed Motion to Strike portions of the Cross-Complainant by Christ Church by the Sea and Christ Church by the Sea Children's Center (collectively, "defendants") is DENIED.

Procedural Issue

Per C.C.P. § 435.5 (a)(3), the "moving party shall file and serve with the motion to strike a declaration" concerning the parties' meet and confer efforts. Plaintiffs have failed to file any such declaration.

Legal Authority

A court may strike any irrelevant, false, or improper matter inserted in any pleading or strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule or an order of the court. Code Civ. Proc. § 436. "Irrelevant" matters include: allegations not essential to the claim, allegations neither pertinent to nor supported by an otherwise sufficient claim or a demand for judgment requesting relief not supported by the allegations of the complaint. Code Civ. Proc. § 431.10(b). A motion to strike can also strike legal conclusions. Weil & Brown, Cal. Prac. Guide, Civil Proc. before Trial, ¶ 7:179 (2010). Conclusory allegations are permitted, however, if they are supported by other factual allegations in the complaint. Perkins v. Superior Court (1981) 117 Cal.App.3d 1, 6.. The grounds for a motion to strike must appear on the face of the pleading or from matters which the court may judicially notice. Code Civ. Proc. § 437.

The use of the motion must be "cautious and sparing" and is not intended to be used as a "procedural 'line item veto' for the civil defendant." PH II, Inc. v. Super. Ct. (1995) 33 Cal.App.4th 1680, 1682-83. Pleadings are to be construed liberally with a view to substantial justice. Code Civ. Proc. § 452; Weil & Brown, Cal. Prac. Guide, Civil Proc. before Trial, ¶ 7:197 (2010). The allegations of the complaint are presumed true; they are read as a whole and in context. Clauson v. Superior Court (1998) 67 Cal.App.4th 1253, 1255. The same liberal policy regarding amendments that applies to the sustaining of demurrers applies for motions to strike. If a defect may be correctible, leave to amend should usually be given. Id. at 168.

Merits

A. Agency Allegations

Plaintiffs argue the agency allegations (ROA 23 ¶ 5) should be stricken because they are not supported by facts and are untrue. ROA 26. As an initial matter, the court accepts all allegations as true at this stage. Additionally, plaintiffs' cited authority has no bearing on the sufficiency of agency allegations. Id. at 3-4. Plaintiff cites *Turman v. Turning Point of Central California, Inc.* (2010) 191 Cal.App.4th 53, 63-64 then states "[i]n *Turner* (sic), the court held that the plaintiff did not state facts sufficient to support malice or oppression or fraud in connection with her discrimination claim." Id. The case is miscited and does not support striking the allegations. The allegations are sufficient at this stage. See, e.g., *Skopp v. Weaver* (1976) 16 Cal. 3d 432, 439 (holding "an allegation of agency as such is a statement of ultimate fact. Consequently further allegations explaining how this fact of agency originated become unnecessary.").

B. Prayer for Punitive Damages

Plaintiffs argue the punitive damages in the prayer should be stricken because it is unsupported by specific facts. ROA 26 at 4-5. As an initial matter, the prayer for punitive damages is not based solely on the defamation claim. ROA 23. In other words, even accepting plaintiffs' argument that the defamation claim as alleged cannot support punitive damages, there is insufficient basis to strike it given punitive damages are also sought for cause of action nos. 1, 3, and 4 and plaintiffs have not challenged any aspect of those claims.

C. Punitive Damages Allegations

Plaintiffs also argue paragraph 19 of the XC should be stricken because specific factual allegations are lacking. The court does not agree.

Pursuant to Civil Code section 3294(a), "[i]n an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant." Civ. Code § 3294(a). Civil Code section 3294(c)(1) defines "malice" as "conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." Similarly, "oppression" is defined as "despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights." Civ. Code § 3294(c)(2).

Plaintiffs assert there are no allegations demonstrating they acted with malice, oppression, or fraud and that the "conclusory" allegation plaintiffs acted with malice is insufficient. ROA 26 at 4-5. This argument depends on an inaccurate characterization of the allegations in XC paragraph 19

		and the court rejects it. As stated above, the XC alleges that, beginning around 09-02-2025, plaintiffs stated “(1) there was mold at Cross-Complainant, Christ Church by the Sea Children’s Center, and (2) that the Pastor at Cross-Complainant, Christ Church by the Sea, had engaged in sexual misconduct.” ROA 23 ¶ 14. The allegations further state that “the conduct of Cross-Defendants, Hillary Jade Cortese and Hillary Pedersen, described herein above, was intended by those Cross-Defendants to cause injury to Cross-Complainants and was despicable conduct carried out by said Cross-Defendants with a willful and conscious disregard of the rights of Cross-Complainants, subjecting Cross-Complainants to cruel and unjust hardship in conscious disregard of Cross-Complainants’ rights such as to constitute malice, oppression or fraud...” Id. ¶ 19. At the pleading stage, the complaint may rely on, as here, ultimate facts of oppression or malice. See Spinks v. Equity Residential Briarwood Apartments (2009) 171 Cal.App.4th 1004, 1055. The court finds the allegations sufficient to survive the motion to strike and on that basis, it is DENIED.
102	Guenther vs. Qazi Cosmetic Clinic 2025-01502198	1. Motion to Compel Arbitration 2. Case Management Conference Defendant Qazi Cosmetic Clinic’s unopposed Motion to Compel Arbitration is GRANTED. In fact, the parties recently submitted a stipulation and proposed order to that effect. The Court has signed the order. The parties left open the question of whether a stay of the representative PAGA claims was appropriate, pending arbitration of Plaintiff’s individual claims. The Court concludes a stay is appropriate. Accordingly, plaintiff is ordered to arbitrate her individual claims against defendant, including her individual PAGA claim. Plaintiff’s representative PAGA claim is stayed, along with the remainder of the action, pending the outcome of the arbitration. See 9 U.S.C. § 3; Cal. Civ. Proc. Code § 1281.4; Viking River Cruises, Inc. v. Moriana (2022) 142 S. Ct. 1906, 1919; Adolph v. Uber Technologies, Inc. (2023) 14 Cal. 5th 1104, 1125. An ADR Review hearing is scheduled for August 19, 2027, at 9:30AM in Department CX102. The parties are ordered to file a joint status conference report at least 10 court days prior to the hearing. Defendant to give notice.

103	Kristoffer Ryan Winters, Trustee of The Kristoffer Ryan Winters Living Trust Dated August 4, 2015 vs. Emmes 2026-01548348	Motion to Compel Arbitration Defendants Beacon Pointe Advisors, LLC, Beacon Pointe Advisors Holdings, LLC, and David Emmes’ alternative Motion to Stay Action is GRANTED; the Motion to Compel Arbitration is DENIED AS MOOT. Defendants may file a motion to compel arbitration after the stay is lifted. “It is black letter law that, when a Federal action has been filed covering the same subject matter as is involved in a California action, the California court has the discretion but not the obligation to stay the state court action.” <i>Caiafa Prof. Law Corp. v. State Farm Fire & Cas. Co.</i> (1993) 15 Cal.App.4th 800, 804; accord <i>Thomson v. Continental Ins. Co.</i> (1967) 66 Cal.2d 738, 746 (“Granting a stay in a case where the issues in two actions are substantially identical ... is a matter addressed to the sound discretion of the trial court.”). ““In exercising its discretion the court should consider the importance of discouraging multiple litigation designed solely to harass an adverse party, and of avoiding unseemly conflicts with the courts of other jurisdictions. It should also consider whether the rights of the parties can best be determined by the court of the other jurisdiction because of the nature of the subject matter, the availability of witnesses, or the stage to which the proceedings in the other court have already advanced.’ [Citation.] The California Supreme Court also has isolated another critical factor favoring a stay of the state court action in favor of the Federal action, a factor which happens to be present in this case—the Federal action is pending in California not some other state.” <i>Caiafa</i>, 15 Cal.App.4th at 804. Courts may also consider judicial economy and efficiency. See, e.g., <i>Schneider v. Vennard</i> (1986) 183 Cal.App.3d 1340, 1348 (to the extent possible, it is preferable to resolve a dispute through a pre-existing action rather than proceeding simultaneously.) Here, the court finds a discretionary stay is warranted. First, this action and the “Federal Action,” i.e., <i>Winters v. Lugano Diamonds & Jewelry, Inc., et al.</i> (C.D. Cal.) No. 8:25-cv-01202-DOC-DFM, involve the same subject matter and the same underlying facts. While plaintiff argues “this case is the only one based on the sale of securities,” the court finds this a distinction without a difference as the Federal Action, as here, is chiefly concerned with Mr. Ferder’s and Lugano Diamonds’ liability for the alleged underlying wrongful acts. Indeed, as plaintiff has alleged, the “securities” at issue are the same “fractionalized interests in diamond jewelry investments,” that are the subject of the related cases. ROA 2 ¶ 62. In other words, the core evidence in this and the Federal Action are coextensive. Plaintiff’s argument also fails to account for the recent SEC action, which directly involves Ferder’s and/or Lugano Diamonds’ sale of securities. <i>Securities and Exchange Commission v. Ferder, et al.</i> (C.D. Cal.) No. 8:26-cv-02492. A stay is appropriate where there is a strong probability that issues necessary to a determination of the action would be concluded, in whole or in part, in the other proceeding. <i>Federal Ins. Co. v. Superior Court</i> (1998)
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	60 Cal.App.4th 1370, 1373; Belnap Freight Lines, Inc. v. Petty (1975) 46 Cal.App.3d 159, 164. The court finds that to be the case here because the causes of action in this case and the Federal Action are based on the same general set of facts. To illustrate, plaintiff cites to Lugano Diamonds and Jewelry no fewer than 75 times in the complaint, alleging “Moti [Ferder] and Lugano offered and sold” the securities at issue. ROA 2 ¶¶ 61, 64, 67, 79. Indeed, as the complaint makes clear, the activities of Ferder and Lugano Diamonds underlie every cause of action upon which the complaint is based. Second, due to the substantial overlap in issues, this action should be stayed to avoid conflicting decisions as to whether Ferder and Lugano Diamonds committed the underlying wrongful acts. Third, the Federal Action, which was filed more than eight months prior to this action, is in the Central District of California and Judge Carter’s court is located one block from the court. Due to his familiarity with the parties, the facts, and the claims, Judge Carter is in a better position to efficiently resolve the underlying facts, and plaintiff has set forth no legitimate basis to undermine that conclusion. It would be a waste of judicial resources for two courts to determine what are likely the same factual issues and/or to resolve discovery disputes pertaining to the same information. See, e.g., OTO, L.L.C. v. Kho (2019) 8 Cal.5th 111, 141 (The court appropriately exercises its discretion to discourage a multiplicity of suits, which will, at the very least, tax the resources of two courts.). Finally, plaintiff claims no prejudice by a stay and the court sees none as either apparent or likely. Accordingly, the action is STAYED pending the outcome of the Federal Action. Defendants’ unopposed Request for Judicial Notice (ROA 39 Exs. 2-7) is GRANTED. Cal. Evid. Code § 452(d). The Court sets a status conference for September 2, 2027, at 9:30AM. The parties shall submit a joint status conference statement 10 days in advance of the hearing. Defendants to give notice
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104	Penaloza vs. OC Dough, Inc. 2020-01122070	1. Petition to Confirm Arbitration Award 2. Case Management Conference 3. Order to Show Cause re: Monetary Sanctions 4. Order to Show Cause re: Monetary Sanctions 1. Petition to Confirm Arbitration Award Defendant OC Dough, Inc. moves to confirm the arbitration award. Plaintiff Efrain Penaloza opposes the petition on a “limited” basis. For the reasons below, defendant’s petition is GRANTED. <u>Legal Standard</u> “Any party to an arbitration in which an award has been made may petition the court to confirm, correct or vacate the award.” Code Civ. Proc., § 1285. “A petition under this chapter shall: (a) Set forth the substance of or have attached a copy of the agreement to arbitrate unless the petitioner denies the existence of such an agreement. (b) Set forth the names of the arbitrators. (c) Set forth or have attached a copy of the award and the written opinion of the arbitrators, if any.” Code Civ. Proc. § 1285.4. “If a petition or response under this chapter is duly served and filed, the court shall confirm the award as made, whether rendered in this state or another state, unless in accordance with this chapter it corrects the award and confirms it as corrected, vacates the award or dismisses the proceeding.” Code Civ. Proc. § 1286. “Accordingly, once a petition to confirm that meets the statutory requirements has been served, “ ‘the burden is on the party attacking the award to affirmatively establish the existence of error.’ ” Valencia v. Mendoza (2024) 103 Cal.App.5th 427, 442, review denied (Oct. 16, 2024). The Court shall vacate the award if the court determines any of the following: (1) The award was procured by corruption, fraud or other undue means. (2) There was corruption in any of the arbitrators. (3) The rights of the party were substantially prejudiced by misconduct of a neutral arbitrator. (4) The arbitrators exceeded their powers and the award cannot be corrected without affecting the merits of the decision upon the controversy submitted. (5) The rights of the party were substantially prejudiced by the refusal of the arbitrators to postpone the hearing upon sufficient cause being shown therefor or by the refusal of the arbitrators to hear evidence material to the controversy
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	or by other conduct of the arbitrators contrary to the provisions of this title. (6) An arbitrator making the award either: (A) failed to disclose within the time required for disclosure a ground for disqualification of which the arbitrator was then aware; or (B) was subject to disqualification upon grounds specified in Section 1281.91 but failed upon receipt of timely demand to disqualify himself or herself as required by that provision. However, this subdivision does not apply to arbitration proceedings conducted under a collective bargaining agreement between employers and employees or between their respective representatives.” Code Civ. Proc. § 1286.2(a). Significantly, “an arbitrator’s decision is not generally reviewable for errors of fact or law, whether or not such error appears on the face of the award and causes substantial injustice to the parties.” <i>Moncharsh v. Heily & Blase</i> (1992) 3 Cal.4th 1, 6. In fact, ““it is within the power of the arbitrator to make a mistake either legally or factually.” <i>Id.</i> at 12. This is because “[w]hen parties opt for the forum of arbitration they agree to be bound by the decision of that forum knowing that arbitrators, like judges, are fallible.” <i>Id.</i> “The arbitrator’s decision should be the end, not the beginning, of the dispute.” <i>Moncharsh</i>, <i>supra</i>, 3 Cal.4th at 10. “Because the decision to arbitrate grievances evinces the parties’ intent to bypass the judicial system and thus avoid potential delays at the trial and appellate levels, arbitral finality is a core component of the parties’ agreement to submit to arbitration.” <i>Id.</i> “Thus, an arbitration decision is final and conclusive because the parties have agreed that it be so.” <i>Id.</i> “By ensuring that an arbitrator’s decision is final and binding, courts simply assure that the parties receive the benefit of their bargain.” <i>Id.</i> “Expanding the availability of judicial review of such decisions would tend to deprive the parties to the arbitration agreement of the very advantages the process is intended to produce.” <i>Id.</i> <u>Merits</u> As an initial matter, the court finds that defendant’s petition to confirm the arbitration award complies with Code of Civil Procedure sections 1285 et seq. Plaintiff’s “limited” opposition does not seek to vacate the award or correct it, but asks that in confirming it, the court “expressly carve out the issues of Aggrieved Employee status and Plaintiff’s ability to represent the other Aggrieved Employees in this pre-2024 PAGA action.” ROA 219. As he previously argued in the motion to vacate the arbitration award, which the court denied (ROA 193), plaintiff argues the PAGA claim was not adjudicated by the arbitrator and his PAGA standing was conclusively established by the Labor Commission’s 2021 order. ROA 166. The court
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expressly adopts and incorporates herein its June 18, 2026 minute order denying plaintiff's motion to vacate the arbitration award. ROA 193.

The settled law in California is that an arbitrator in California does not have to follow the law. Moncharsh, supra, 3 Cal.4th at 33 (even "an error of law apparent on the face of the award that causes substantial injustice does not provide grounds for judicial review"). "Arbitrators are not required to find facts and give reasons for their awards. [Citation]. Parties who agree to arbitration may expect not only to reap the advantages that flow from the use of that nontechnical, summary procedure, but also to find themselves bound by an award reached by paths neither marked nor traceable and not subject to judicial review." Krautner v. Johnson (1961) 189 Cal. App. 2d 717, 719. Arbitrators "may base their decision upon broad principles of justice and equity, and in doing so may expressly or impliedly reject a claim that a party might successfully have asserted in a judicial action." Wagner Constr. Co. v. Pac. Mech. Corp. (2007) 41 Cal. 4th 19, 28.

Here, the arbitrator granted summary judgment as to each of the seven claims plaintiff alleged in arbitration. ROA 199 (Decision and Order) at 8:15-22 ("It is undisputed that Claimant's employment ended on November 30, 2019, and his complaint under the demand for arbitration was filed on February 8, 2023. This is more than 3 years after the employment ended, and Claimant's 1st through 6th Claims for Relief are barred by the Statute of Limitations. Respondent is entitled to Summary Judgment on these claims. The claims at issue are hereby dismissed. Because Claimant's 7th Claim is dependent upon his ability to prevail upon one of the claims in Claims 1-6, which are being dismissed, Claim #7 is also dismissed.").

Plaintiff's reference to the California Supreme Court's pending decision in Leeper v. Shipt, Inc. suggests that, to the extent headless PAGA claims are permitted, plaintiff intends to pursue only the representative portion of his PAGA claim, which was stayed pursuant to the order granting the motion to compel arbitration of plaintiff's individual claims (including the individual portion of the PAGA claim). ROA 130. Notably, plaintiff did not allege a headless PAGA claim. ROA 8 (FAC) ¶ 109 (expressly alleging PAGA claim as "a claim for penalties on behalf of himself and all other aggrieved employees under PAGA").

Regardless, this issue is not presently before the Court in the instant petition to confirm. The award is confirmed.

The Court sets an OSC hearing for January 21, 2027 at 2PM regarding whether or not Plaintiff's case can or should proceed as a "headless" PAGA case. Briefing addressing the issue shall proceed as per the Code applicable to law and motion. **The CMC is likewise continued to this date.**

2. OSC re: Monetary Sanctions

		The court will discharge the order to show cause for plaintiff's failure to appear at the August 6, 2026 Case Management Conference. 3. OSC re: Monetary Sanctions The court will discharge the order to show cause for the parties' failure to file a Joint Case Management Statement in advance of the August 6, 2026 Case Management Conference.
105	Lundin vs. Goldman 2022-01290254	Motion for Discovery Sanctions Defendants David Goldman, Melanie Goldman, and Elevate Retail Group's Motion is GRANTED IN PART AND DENIED IN PART. <u>Contempt</u> "Defendants request that Plaintiffs be found in contempt of the Stipulated Protective Order and fine each Plaintiff \$1,000. <i>See</i> Code Civ. Proc., § 1218." ROA 1453 at 15-16. For contempt sanctions, there must be a finding of willful disobedience, not merely the failure to obey (i.e. noncompliance with the court's order). <i>See</i> Code Civ. Proc. § 2023.030(e). Further, contempt proceedings have special rules. As explained in <i>Koshak v. Malek</i> (2011) 200 Cal. App. 4th 1540, 1548–49, an indirect contempt proceeding is commenced by the presentation of an affidavit setting forth the alleged contemptuous acts. Indirect contempt means that acts constituting contempt were not committed in the presence and view of the court. <i>Reliable Enterprises, Inc. v. Superior Court</i> (1984) 158 Cal.App.3d 604. The affidavit is in effect a complaint, frames the issues before the court and is a jurisdictional prerequisite to the court's power to punish. Without a sufficient affidavit, any contempt order is void. <i>In re Koehler</i> (2010) 181 Cal.App.4th 1153, 1169. "The substantive issues involved in a contempt proceeding are (1) the rendition of a valid order, (2) actual knowledge of the order, (3) ability to comply, and (4) willful disobedience. <i>Conn v. Superior Court</i> (1987) 196 Cal. App. 3d 774, 784. A contempt proceeding is commenced by the filing of an affidavit showing the facts satisfying these four requirements (the "charging allegations"). Code Civ. Proc. § 1211. To establish willful disobedience, the affidavit should show that the alleged contemnor had personal notice of the contents of the order. The order that was disobeyed must have been sufficiently specific to make it demonstrable beyond a reasonable doubt that it was disobeyed. <i>See Board of Supervisors v. Superior Court</i> (1995) 33 Cal.App.4th 1724, 1737.

	If the court is satisfied that the affidavit alleges sufficient grounds for contempt, it signs an “OSC re Contempt,” setting the date and time for a hearing. Code Civ. Proc. § 1212. The respondent must be formally notified of the contempt charge and of the time and place of the hearing; otherwise, the court lacks jurisdiction to proceed. For this purpose, both the OSC and affidavit ordinarily must be served on respondent in a manner authorized for service of summons. “The order to show cause acts as a summons to appear in court on a certain day and, as its name suggests, to show cause why a certain thing should not be done. ...Unless the citee has concealed himself from the court, <u>he must be personally served</u> with the affidavit and the order to show cause; otherwise, the court lacks jurisdiction to proceed.” Cedars-Sinai Imaging Medical Group v. Superior Court (2000) 83 Cal.App.4th 1281, 1286-87; see also, In re Koehler, supra, 181 Cal.App.4th at 1169 (“[A] contempt citation must be served personally. Service of an order to show cause to bring a party into contempt is insufficient if made by mail on the party's attorney of record.”). If the court elects to proceed with a contempt hearing, the target will have to be advised of his Fifth Amendment rights, and the court will have to hold an evidentiary hearing. Because of the criminal nature of contempt proceedings, the contempt must be proved beyond a reasonable doubt. Farce v. Superior Court (1983) 148 Cal. App.3d 915, 917-918. The punishment for contempt includes imprisonment, a monetary fine of up to \$1,000, reasonable attorney fees and costs, and/or a monetary sanction of up to \$1,500 payable to the court, as well as all the other discovery sanctions. Code Civ. Proc. §§1218(a), 1219, 177.5, and 2023.030. Defendants’ request for a contempt order is DENIED. Defendants have not complied with the procedural requirements necessary for a contempt order, including the filing of a sufficient charging affidavit, properly seeking an order to show cause, or personally serving this motion on plaintiffs. Code Civ. Proc. §§ 1212, 2023.030(e); Farce v. Superior Court (1983) 148 Cal. App.3d 915, 917-918; Cedars-Sinai Imaging Medical Group v. Superior Court (2000) 83 Cal.App.4th 1281, 1286-87. <u>Injunctive Relief</u> “Defendants seek an injunction prohibiting further accessing of Mr. Goldman’s mailbox, which must be quarantined on LBG REC’s server or removed and preserved in its entirety.” ROA 1453 at 16. Defendants cite a single federal case which discussed the federal court’s inherent authority. Id. The court may grant an injunction pursuant to C.C.P. § 526. “To obtain a preliminary injunction, a plaintiff ordinarily is required to present evidence of the irreparable injury or interim harm that it will suffer if an injunction is not issued pending an adjudication of the merits.” Costa Mesa City Employees' Assoc. v. City of Costa Mesa (2012) 209 Cal.App.4th 298, 305. “If the threshold requirement of irreparable injury is established, then
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we must examine two interrelated factors to determine whether the trial court's decision to issue a preliminary injunction should be upheld: “(1) the likelihood that the moving party will ultimately prevail on the merits and (2) the relative interim harm to the parties from issuance or nonissuance of the injunction.” Id. at 305-306. The party seeking the injunction is required to show all elements necessary to support issuing injunctive relief. O'Connell v. Superior Court (2006) 141 Cal.App.4th 1452, 1481 (“the burden was on plaintiffs, as the parties seeking injunctive relief, to show all elements necessary to support issuance of a preliminary injunction”).

Here, defendants have made no attempt to meet their burden. **The request for an injunction is DENIED.**

Sanctions Generally

California discovery law authorizes a range of penalties for conduct amounting to ‘misuse of the discovery process,’ ” including terminating, issue, and evidentiary sanctions. Doppes v. Bentley Motors, Inc. (2009) 174 Cal.App.4th 967, 991 (Doppes); Code Civ. Proc., § 2023.030. “In lieu of or in addition to [a terminating, issue, and/or evidentiary] sanction, the court may impose a monetary sanction....” Code Civ. Proc., § 2031.300(c). “The trial court has broad discretion in selecting discovery sanctions, subject to reversal only for abuse.” Doppes at 992.

The propriety of the sanction is determined by the totality of the circumstances, including the willfulness of the improper acts, the detriment to the propounding party, and the number of formal and informal attempts to obtain the discovery. Lang v. Hochman (2000) 77 Cal.App.4th 1225, 1244-1247 (Lang). “Discovery sanctions must be tailored in order to remedy the offending party’s discovery abuse, should not give the aggrieved party more than what it is entitled to, and should not be used to punish the offending party.” Karlsson v. Ford Motor Co. (2006) 140 Cal.App.4th 1202, 1217 (Karlsson); Padron v. Watchtower Bible and Tract Society of New York, Inc. (2017) 16 Cal.App.5th 1246, 1260. That said, “where a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction” or other nonmonetary sanctions. Mileikowsky v. Tenet Healthsystem (2005) 128 Cal.App.4th 262, 279-280; see Karlsson, supra, 140 Cal.App.4th 1202 (evidence and issue sanctions justified based on a pattern of willful discovery abuses, including failure to obey discovery orders]; Lang at 1244-1247.

Only two facts are absolutely prerequisite to imposition of the sanction: (1) there must be a failure to comply and (2) the failure must be willful. Biles v. Exxon Mobil Corp. (2004) 124 Cal.App.4th 1315, 1327 (imposition of nonmonetary sanction such as an evidence sanction requires

a willful failure to comply); Vallbona v. Springer (1996) 43 Cal.App.4th 1525, 1545 (same).

Willfulness in this context means a “conscious or intentional failure to act, as distinguished from accidental or involuntary noncompliance....” Deyo v. Kilbourne (1978) 84 Cal.App.3d 771, 787-788 (Deyo). “Lack of diligence may be deemed willful in the sense that the party understood her obligation, had the ability to comply, and failed to comply. A willful failure does not necessarily include a wrongful intention to disobey discovery rules. A conscious or intentional failure to act, as distinguished from accidental or involuntary noncompliance, is sufficient to invoke a penalty.” Deyo, at 787-788.

The Prior Sanctions Order

On 09-29-2025, the court granted defendants’ motion for sanctions related to the unauthorized access of Goldman’s computer, private Gmail account, and Dropbox account, disabled Goldman’s access to the LBG REC computer server, and removed documents from the LBG SEC server. ROA 1272. The court made the following rulings:

1. The request for terminating sanctions as to the Sixth Cause of Action in the SAC and Plaintiffs' Answer to the First and Second Causes of Action in the FACC is DENIED. The Court finds that based on the facts and evidence submitted, terminating sanctions are unwarranted.
2. The Court finds that an adverse inference is warranted, and therefore the Motion is GRANTED as to that request. Therefore, at the time of trial, the Court intends to provide a jury instruction consistent with CACI 204. However, at this time, the Court declines to determine the precise language to be used. Instead, the Court will defer that determination until the Pre-Trial Conference set for August 7, 2026.
3. The Court finds that an evidentiary sanction is warranted, and thus the Motion is GRANTED as to that request. However, the Court declines to issue the evidentiary sanction requested by the Goldman Defendants and instead will preclude Plaintiffs from using any evidence obtained through their surveillance of Goldman's LBG-owned computer. The scope of the evidentiary sanction will be determined at the Pre-Trial Conference set for August 7, 2026.
4. The Court finds that a monetary sanction is warranted, and therefore, the Court GRANTS the Motion as to that request and issues a monetary sanction of \$35,571.00 against Plaintiffs. However, the Court STAYS the imposition of the sanction pending trial.

The Newly Alleged Sanctionable Acts

The Stipulation and Protective Order (the “PO”) in this case was entered 01-27-2023 and requires “Nominal Defendant LBG’s counsel [Outwater] to quarantine and to not produce all potentially attorney-client privileged communications...” ROA 57 ¶ 9. Defendants assert plaintiffs violated the PO because Lundin continued to have full administrative access over Goldman’s “lbgfunds.com” email, including the privileged documents. It is unclear what steps, if any, Outwater took to quarantine privileged communications and to what extent the parties directed it to do so. At any rate, defendants point to the following acts to demonstrate violation of the PO:

1. Supplemental Declaration of Jill Glennon (ROA 1813) Exs. G-H

The 08-05-2022 “LBG Buyout” email between Mr. Goldman and his divorce attorneys was forwarded by Lundin to Beiswenger on 08-08-2022. Critically, this was prior to the PO being entered and indeed, prior to this case being filed. Additionally, counsel for plaintiffs provides a declaration stating these documents were produced to defendants in May 2023 as a result of agreed-upon search term hits. ROA 1843 ¶ 25.

This does not demonstrate violation of the protective order.

2. Goldman’s Auto-Reply Email Folder

After Goldman departed LBG REC on June 26, 2023, plaintiffs set up an auto-reply email, which notified senders that “David Goldman is no longer an LBG employee. For matters related to leasing or other LBG related matters, please contact Doug Beiswenger at dbeiswenger@lbgfunds.com or phone 949-697-9220.” ROA 1813 Ex. A. This was LBG REC’s standard practice. ROA 1833 Ex. 1 at 127:15-22; ROA 1841 ¶ 4. Any subsequent emails that were sent to Goldman’s email address were to be forwarded to a new folder in Beiswenger’s Outlook. Id. The information technology (“IT”) person explained the folder would be populated by “NEW emails only, not historical.” Id. (emphasis in original). The IT person did not originally recall the access as so limited, but later recalled it was after being shown his email. ROA 1833 Ex. 2 at 351:4-23. Additionally, the evidence indicates the inbox did not function properly, and no privileged emails were viewed. ROA 1841 ¶¶ 5-8; ROA 1837 ¶¶ 6-8.

This does not demonstrate violation of the protective order.

3. Copy of Goldman’s Email Account

A copy of the account was created in December 2024 pursuant to Goldman’s document request for same. ROA 1843 ¶ 18 Ex. J; ROA 1813 Exs. B at 31:2-8, C at 37. The download link was uploaded to a file

sharing site, but was never downloaded by anyone and expired. ROA 1833 Ex. 2 at 374:19-375:6.

This does not demonstrate violation of the protective order.

4. Search for Alex MacLean Documents

On 09-07-2023, Beiswenger requested that the IT person search for emails in Goldman's and Han's email accounts "with a person named Alex Maclean, whose email is Alex@cra-nw.com." ROA 1813 Ex. J. Maclean is not an attorney, but a real estate broker, so there is no obvious reason to believe such emails would be privileged. Furthermore, while it is unclear what search terms were actually used, and the IT person stated he assumed the results included communications that "referenced" Maclean, he did not run the search himself. Reply at 8. Beiswenger said "emails with" and provided the actual email address. Id. In other words, perhaps a search was run for terms such as "Maclean," but this does not clearly demonstrate willfulness to violate the protective order. Nonetheless, the parties were engaged in discovery and plaintiffs should have made a document request rather than exercise self-help and perform a search over the entire email account without any assurance privileged communications were, as the PO required, quarantined and thus excluded from any search results.

The court finds this search was a violation of the protective order.

Terminating Sanctions

"Defendants [] seek terminating sanctions, dismissing Plaintiffs' Third Amended Complaint in its entirety." ROA 1453 at 16.

The trial court may order a terminating sanction for discovery abuse "after considering the totality of the circumstances: [the] conduct of the party to determine if the actions were willful; the detriment to the propounding party; and the number of formal and informal attempts to obtain the discovery." *Los Defensores, Inc. v. Gomez* (2014) 223 Cal. App. 4th 377, 390. "Generally, "[a] decision to order terminating sanctions should not be made lightly. But where a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction." Id.

"Terminating sanctions for discovery abuses are to be used sparingly because of the drastic effect of their application. Cal. Civ. Proc. Code §§ 2023.010, 2023.030." *Dep't of Forestry & Fire Prot. v. Howell* (2017) 18 Cal. App. 5th 154, 191. "Thus, under the statutory scheme, trial courts should select sanctions tailored to the harm caused by the misuse of the discovery process and should not exceed what is required to protect the party harmed by the misuse of the discovery process. [Citation.] Therefore, sanctions are generally imposed in an incremental approach, with terminating sanctions being the last resort. Ibid. However, even under the Civil Discovery Act's incremental approach, the trial court may impose

terminating sanctions as a first measure in extreme cases, or where the record shows [] lesser sanctions would be ineffective.” Id. at 191–92.

Based on plaintiffs’ actions discussed above, the court finds terminating sanctions are not appropriate. Plaintiff is cautioned, however, that the court may impose terminating sanctions for any future discovery abuses.

Evidentiary Sanctions

“If the Court does not dismiss Plaintiffs’ TAC, Defendants request an evidentiary sanction prohibiting Plaintiffs from admitting any evidence or argument regarding Mr. Goldman’s divorce.” ROA 1453 at 17.

“With respect to Mr. Goldman’s cross-claims, Mr. Goldman seeks an evidentiary sanction or adverse inference instruction to establish that Plaintiffs did in fact access and review all of the confidential and privileged emails in Mr. Goldman’s lbgfunds.com mailbox after Offsite granted Plaintiffs access in June 2023.” Id.

The court finds neither of these evidentiary sanctions is justified. The LBG Buyout email, which involved Goldman’s divorce attorney, occurred long before the PO was entered and before the case was filed. It was no secret Goldman had divorced his wife and defendants fail to point to any information about the divorce that plaintiffs improperly learned and/or have used in this case.

Monetary Sanctions

“Defendants seek monetary sanctions in the amount of the attorneys’ fees and eDiscovery vendor costs that Defendants incurred to perform privilege reviews of Mr. Goldman’s emails” (\$53,495.25), reasonable attorneys’ fees and expert fees incurred to bring this motion” (\$20,968), and request to “lift the stay on the monetary award from the Court’s prior ruling on the spoliation motion and order those sanctions due and payable in the amount of \$35,571.00.” ROA 1453 at 17.

The court finds monetary sanctions appropriate based on the violation of the protective order by conducting the MacLean email search. Defendants’ request is GRANTED. Plaintiffs shall pay defendants’ reasonable attorneys’ fees and costs in the amount of **\$20,968**. Payment in full is due to defendants no later than 20 days following notice of this order.

Defendants’ request to lift the stay on the previously ordered monetary sanctions award in the amount of \$35,571.00 is GRANTED. ROA 1272. Payment in full is due to defendants no later than 20 days following notice of this order.

Defendants’ request for payment of fees related to the privilege review (\$53,495.25) is DENIED.

106	Balt USA, LLC vs. Treadstone Medical LLC 2021-01237081	Motion to Seal Plaintiff Balt USA, LLC’s motions to seal (ROA 1968) is GRANTED. Plaintiff’s motion seeks to permanently seal Exhibits 25-38, 42-47, and 49-66 to the Declaration of Eric Kohan in Support of Plaintiff Balt USA, LLC’s Motion for Leave to Amend. <u>Legal Authority</u> “Unless confidentiality is required by law, court records are presumed to be open.” (Cal. Rules of Court [CRC], rule 2.550(c).) “The court may order that a record be filed under seal only if it expressly finds facts that establish: (1) [t]here exists an overriding interest that overcomes the right of public access to the record; (2) [t]he overriding interest supports sealing the record; (3) [a] substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) [t]he proposed sealing is narrowly tailored; and (5) [n]o less restrictive means exist to achieve the overriding interest.” (CRC, rule 2.550(d).) However, this rule “does not apply to records that are required to be kept confidential by law” (CRC, rule 2.550(a)(2)), such as “[a] document which is protected by the lawyer-client privilege” (<i>Huffy Corp. v. Super. Ct.</i> (2003) 112 Cal.App.4th 97, 108). Overriding interests include a substantial probability that the movant’s business, competitiveness, and privacy rights will be adversely affected if the record is not sealed. (<i>See, e.g., Overstock.com, Inc. v. Goldman Sachs Group, Inc.</i> (2014) 231 Cal.App.4th 471, 503, internal quotes & citations omitted [right to privacy “extends to one’s confidential financial affairs” and “embraces confidential financial information in whatever form it takes, whether that form be tax returns, checks, statements, or other account information”]; <i>McGuan v. Endovascular Technologies, Inc.</i> (2010) 182 Cal.App.4th 974, 988-989 [affirming order granting motion to seal documents containing trade secrets]; <i>see also Nixon v. Warner Communications, Inc.</i> (1978) 435 U.S. 589, 598 [recognizing sealing appropriate for “sources of business information that might harm a litigant’s competitive standing”]; <i>Hecht, Solberg, Robinson, Goldberg & Bagley LLP v. Super. Ct.</i> (2006) 137 Cal.App.4th 579, 594 [“Although corporations have a lesser right to privacy than human beings and are not entitled to claim a right to privacy in terms of a fundamental right, some right to privacy exists”]; <i>Universal City Studios, Inc. v. Super. Ct.</i> (2003) 110 Cal.App.4th 1273, 1286 [denying motion to seal due to public disclosure, but finding that normally, sealing is appropriate where “information involves confidential matters relating to the business operations of defendant” and “public revelation of these matters would interfere with its ability to effectively compete in the marketplace”].) The moving party bears the burden of “(1) identifying the specific information claimed to be entitled to such treatment[and] (2) identifying the nature of the harm threatened by disclosure.” (<i>H.B. Fuller Co. v. Doe</i> (2007) 151 Cal.App.4th 879, 894 [additionally, the court must also “(3)
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		identify[] and account[] for countervailing considerations”].) “This means at a minimum that the [moving] party . . . must come forward with a specific enumeration of the facts sought to be withheld and specific reasons for withholding them.” (<i>Id.</i>) Indeed, CRC rule 2.551(b)(1) requires that a motion to seal “must be accompanied by a memorandum and a declaration containing facts sufficient to justify the sealing.” <u>Merits</u> Plaintiff has submitted a declaration attesting that the material sought to be sealed contains “Balt’s highly sensitive, non-public, confidential and trade secret information.” (ROA 1957.) Among other things, the documents contain “summary technical documentation, design files, and reporting related to Balt’s Titan catheter system (Exhibits 25-26, 35, 51-53, 62), product design specifications, validations plans, manufacturing procedures, risk analysis, and other reporting related to Balt’s Ballast Long Sheath (Exhibits 27-30, 58, 63-65), risk assessment files, product design specifications, and other reporting related to Balt’s Squid products (Exhibit 31-32, 42-45, 49), validation protocol for Balt’s Magic catheter (Exhibit 33, 55, 61), [and] performance studies for Balt’s Eclipse 2L Dual Lumen Balloon Catheter (Exhibit 34).” (ROA 1968.) “Balt undertakes significant efforts to maintain the secrecy of such information, and it would suffer significant harm if such information were revealed to the public, including to competitors.” (<i>Id.</i>) “If this information were made public, competitors would gain confidential insight into Balt’s internal products which could be used to create competing products, resulting in an unfair competitive advantage.” (ROA 1957.) Accordingly, the Court finds that Plaintiff has met the procedural requirements for the instant motion and sufficiently demonstrated overriding interests support sealing the requested items. The proposed order (ROA 1953) is deficient. Within (5) court days of this ruling, Plaintiff is also ORDERED to submit a revised proposed order setting forth the information required by CRC rule 2.550(e)(1)(A), as well as identifying the specific filings—by pleading title and ROA number—that are to be sealed in accordance with this ruling. Plaintiff shall give notice.
107	Higgins vs. Spigen Inc. 2024-01376537	Motion to Seal Plaintiff Mary Higgins moves to seal a settlement agreement (and refence thereto) between plaintiff and defendant Spigen, Inc., which defendant lodged conditionally under seal in support of plaintiff’s motion approval of a PAGA settlement. For the following reasons, the motion is denied. Unless confidentiality is required by law, court records are presumed to be open. Cal. R. Ct. 2.550(c). A record must not be filed under seal without a court order. Cal. R. Ct. 2.551(a). The court must not permit a record to be filed under seal based solely on the agreement or stipulation of the parties. <i>Id.</i>

	A party requesting that a court record be filed under seal “must file a motion or an application for an order sealing the record.” Cal. R. Ct. 2.551(b)(1). “The motion or application must be accompanied by a memorandum and a declaration containing facts sufficient to justify the sealing.” <i>Id.</i> A court may order a record be filed under seal only if the court expressly finds facts that establish: (1) There exists an overriding interest that overcomes the right of public access to the record; (2) The overriding interest supports sealing the record; (3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) The proposed sealing is narrowly tailored; and (5) No less restrictive means exist to achieve the overriding interest. Cal. R. Ct. 2.550(d). An order sealing a record must specifically state the facts that support the findings, and direct the sealing of only those documents and pages, or, if reasonably practicable, portions of those documents and pages, that contain the material that needs to be placed under seal. Cal. R. Ct. 2.550(e)(1). All other portions of each document or page must be included in the public file. <i>Id.</i> Here, plaintiff has failed to file a declaration accompanying the motion to seal and has thus failed to provide facts justifying the proposed sealing. To the extent plaintiff relies on the declaration supporting the motion to approve the settlement (ROA 89), it contains no such facts. Should plaintiff choose to file a motion to seal that satisfies procedural requirements, the declaration must explain with factual support, among other things, why plaintiff’s individual settlement agreement should be shielded from, e.g., aggrieved employees whose interests the named plaintiff purports to represent.
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109	Quinn vs. Valley Post-Acute And Rehab LLC 2025-01518740	Motion for Summary Judgment and/or Adjudication Plaintiff Harvey Quinn moves for summary adjudication of certain affirmative defenses asserted by Defendant VPR Ops, LLC. The motion is unopposed. For the reasons set forth below, the motion is DENIED. <u>Legal Authority</u> Pursuant to C.C.P. § 437c(f)(1), a party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty. C.C.P. §437c(f)(1). “A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.” Id. When a plaintiff moves for summary adjudication on an affirmative defense, the court shall grant the motion “only if it completely disposes” of the defense. (Code Civ. Proc., § 437c, subd. (f)(1).) The plaintiff bears the initial burden to show there is no triable issue of material fact as to the defense and that he or she is entitled to judgment on the defense as a matter of law. In so doing, the plaintiff must negate an essential element of the defense, or establish the defendant does not possess and cannot reasonably obtain evidence needed to support the defense. (See <i>Securitas Security Services USA, Inc. v. Superior Court</i>, supra, 197 Cal.App.4th at pp. 119–120, 127 Cal.Rptr.3d 883; Code Civ. Proc., § 437c, subd. (f); see also <i>Westlye v. Look Sports, Inc.</i> (1993) 17 Cal.App.4th 1715, 1726–1727, 22 Cal.Rptr.2d 781.) If the plaintiff does not make this showing, “ ‘it is unnecessary to examine the [defendant's] opposing evidence and the motion must be denied.’ ” (<i>Rehmani v. Superior Court</i> (2012) 204 Cal.App.4th 945, 950, 139 Cal.Rptr.3d 464.) “ ‘However, if the moving papers establish a prima facie showing that justifies a [ruling] in the [plaintiff's] favor, the burden then shifts to the [defendant] to make a prima facie showing of the existence of a triable material factual issue.’ ” (Ibid.) <i>See</i> <i>See's Candy Shops, Inc. v. Superior Ct.</i> (2012) 210 Cal. App. 4th 889, 899–900. A court may not make credibility determinations or weigh the evidence on a motion for summary judgment or adjudication, and all evidentiary conflicts are to be resolved against the moving party. <i>McCabe v. American Honda Motor Corp.</i> (2002) 100 Cal.App.4th 1111, 1119. “The court . . . does not resolve issues of fact. The court seeks to find contradictions in the evidence, or inferences reasonably deducible from the evidence, which raise a triable issue of material fact.” <i>Johnson v. United Cerebral Palsy, etc.</i> (2009) 173 Cal.App.4th 740, 754. “[S]ummary judgment cannot be granted when the facts are susceptible [of] more than one reasonable inference . . .” <i>Rosas v. BASF Corp.</i> (2015) 236 Cal.App.4th 1378, 1392.
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In ruling on a motion for summary judgment or summary adjudication, “the court must ‘consider all of the evidence’ and ‘all’ of the ‘inferences’ reasonably drawn therefrom, and must view such evidence and such inferences in the light most favorable to the opposing party.” Aguilar v. Atlantic Richfield Co. (20021) 25 Cal.4th 826, 843. Courts “construe the moving party’s affidavits strictly, construe the opponent’s affidavits liberally, and resolve doubts about the propriety of granting the motion in favor of the party opposing it.” Unilab Corp. v. Angeles-IPA (2016) 244 Cal.App.4th 622, 636.

Merits

Issue 1 (Affirmative Defense No.3)

The Third Affirmative Defense asserted by defendant VPR, Ops, LLC states “Defendants assert that, to the extent that any of the alleged wrongs were committed by others, liability for any and all such claims is barred as against these answering Defendants in their entirety.” ROA 44.

Plaintiff asserts defendant VPR Ops, LLC has conceded it does not possess and cannot obtain any admissible evidence to support this affirmative defense, and it is therefore subject to summary adjudication. SSUMF (ROA 85) Nos. 1-6. Defendant has not opposed the motion.

Plaintiff argues there is a lack of evidentiary support, as shown by defendant’s responses to Special Interrogatory Nos. 8-9, which seek the facts supporting the defense and the identification of individuals possessing information supporting the defense. SSUMF (ROA 85) Nos. 1-6. Plaintiff argues the lack of evidentiary support is further demonstrated by defendant’s response to Request for Production No. 9, which seeks documents supporting the defense. Id.

As to the interrogatories, defendant VPR Ops, LLC responded it “had no involvement in the care of the plaintiff, staffing of the facility, operation of the facility and made no decisions on behalf of the facility” and identified “David Levy, Moishe Frankel, Nathan Pease, [and] Rush Melliti” as possessing supporting information. SSUMF Nos. 1-6. As to the document request, defendant responded that “[a]ll such documents are in the possession of VPR which had sole authority and responsibility for operating decisions of the facility.” Id. Plaintiff argues these responses fail to provide facts because no “outside sources of information” are identified. ROA 87 at 2. Plaintiff does not explain the legal significance of this contention and the court is not aware of any. These responses are not devoid of facts. Furthermore, to the extent plaintiff argues defendants Valley Post-Acute and Rehab, LLC and defendant VPR, Ops, LLC should not be treated as separate entities, that has not been established. ROA 87 at 2-4.

Additionally, defendant answered the complaint on 01-21-2026. ROA 44. Plaintiff served the discovery requests discussed above on 02-25-2026 and defendant provided its responses on 06-03-2026. SSUMF (ROA 85) Nos. 1-6. This does not establish “defendant does not possess and cannot

reasonably obtain evidence needed to support the defense” sufficient to shift the burden to defendant. See’s Candy Shops, Inc. v. Superior Ct. (2012) 210 Cal. App. 4th 889, 899–900. Furthermore, the timing of the discovery does not create a logical inference that defendant cannot reasonably obtain evidence needed to support the defense. Gaggero v. Yura (2003) 108 Cal.App.4th 884, 892 (in determining whether a moving party meets its initial burden based on an absence-of-evidence theory, the court must determine whether evidence gives rise to a “logical inference of an absence of facts”); Cf. Union Bank v. Superior Court (1995) 31 Cal.App.4th 573, 590 (finding moving defendant may show plaintiff’s lack of evidence by factually devoid discovery responses after plaintiff has had adequate opportunity for discovery); see also Krantz v. BT Visual Images, L.L.C. (2001) 89 Cal. App. 4th 164, 174 (“in cases in which...discovery is incomplete, the motion for summary judgment should not be granted”). Moreover, defendant has no affirmative duty to amend or supplement its interrogatory responses or its responses to the requests for production and there is no evidence plaintiff sought updated responses.

Accordingly, plaintiff has failed to meet his initial burden to show there is no triable issue of material fact as to Affirmative Defense No. 3 and summary adjudication of Issue No. 1 is denied.

Issues 2-6 (Affirmative Defense Nos. 5, 6, 17, 18, 23)

Plaintiff asserts defendant VPR Ops. LLC has conceded it does not possess and cannot obtain any admissible evidence to support affirmative defense nos. 5 (“Waiver, Estoppel, Laches, and Unclean Hands”), 6 (“Statutes of Limitations”), 17 (“Numerosity”), 18 (“Not Similarly Situated”), 23 (“Typicality”) and the defenses are therefore subject to summary adjudication. SSUMF (ROA 85) Nos. 7-36. Defendant has not opposed the motion.

Plaintiff argues there is a lack of evidentiary support, as shown by defendant’s responses to Special Interrogatory Nos. 10-19, which seek the facts supporting the defenses and identification of individuals possessing information supporting the defenses. SSUMF (ROA 85) Nos. 7-36. Plaintiff argues the lack of evidentiary support is further demonstrated by defendant’s response to Request for Production Nos. 10-15, which seek documents supporting the defenses. Id.

For each of the affirmative defenses above, defendant VPR Ops, LLC provided the following interrogatory response: “Responding party has no facts at this time. The affirmative defenses were raised so as to preserve them for trial as facts were uncovered during the litigation.” SSUMF (ROA 85) Nos. 7-36. As to the document requests, defendant provided the following response to each: “There are no such documents at this time.” SSUMF (ROA 85) Nos. 7-36. Additionally, as to affirmative defense nos. 18 and 23, defendant added to its document request responses above the phrase “as it is uncertain what claims are attributed to the absent class members.” SSUMF (ROA 85) Nos. 30, 36.

The court finds defendant's responses above are devoid of facts. Defendant answered the complaint on 01-21-2026. ROA 44. Plaintiff served the discovery requests discussed above on 02-25-2026 and defendant provided its responses on 06-03-2026. SSUMF (ROA 85) Nos. 7-36. Plaintiff does not establish "defendant does not possess and cannot reasonably obtain evidence needed to support the defense" sufficient to shift the burden to defendant. See's Candy Shops, Inc. v. Superior Ct. (2012) 210 Cal. App. 4th 889, 899-900. Furthermore, the timing of the discovery does not create a logical inference that defendant cannot reasonably obtain evidence needed to support the defense. Gaggero v. Yura (2003) 108 Cal.App.4th 884, 892 (in determining whether a moving party meets its initial burden based on an absence-of-evidence theory, the court must determine whether evidence gives rise to a "logical inference of an absence of facts"); Cf. Union Bank v. Superior Court (1995) 31 Cal.App.4th 573, 590 (finding moving defendant may show plaintiff's lack of evidence by factually devoid discovery responses after plaintiff has had adequate opportunity for discovery); see also Krantz v. BT Visual Images, L.L.C. (2001) 89 Cal. App. 4th 164, 174 ("in cases in which...discovery is incomplete, the motion for summary judgment should not be granted"). Moreover, defendant has no affirmative duty to amend or supplement its interrogatory responses or its responses to the requests for production and there is no evidence plaintiff sought updated responses.

Accordingly, plaintiff has failed to meet his initial burden to show there is no triable issue of material fact as to Affirmative Defense Nos. 5, 6, 17, 18, and 23, and summary adjudication of Issue Nos. 2-6 is denied.

Defendant to give notice.

TENTATIVE RULINGS

9/11/2026

10:00 AM

100	Balt USA, LLC vs. Treadstone Medical LLC 2021-01237081	Motion for Protective Order
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